

Rukmani Devi vs The State on 28 May, 2011

IN THE COURT OF SHRI SANJEEV KUMAR SINGH :
ADMINISTRATIVE CIVIL JUDGE (CENTRAL) : DELHI

Petition No.: 682/1998
Unique ID No: 02401C0007731998

In the matter of:-

Rukmani Devi,
widow of Late Sh. Janak Raj,
R/o. 534/3, Paschim Puri,
New Delhi-110063.

....Petitioner.

Versus

The State

.....Respondents.

Date of Institution : 03.09.1998
Date of order when reserved : 18.04.2011
Date of order when announced : 28.05.2011

J U D G M E N T:

This is a succession petition preferred by petitioner namely Rukmani Devi seeking succession certificate qua the debts and securities of deceased Janak Raj, who expired on 05.08.1998. 2 After filing of this petition, notice of filing of this petition was given to the general public by way of publication in the newspaper 'NATIONAL HERALD' dated 23.09.1998, but none has appeared from general public to oppose or contest the present petition. 3 It is the version of the petitioner that she is the legally wedded wife of the deceased. The deceased has left behind two sons and they are major and they are living with the Petitioner at 534/3, Paschim Puri, Punjabi Bagh, Delhi and both sons are twins.

4. Objections were filed by one Smt. Chandra, claiming herself to be the legally wedded wife of the deceased. It is submitted that four children namely Smt. Neetu, Sh. Deepak, Sh. Kamal And Ms. Barkha were born out of the wedlock of the petitioner with the deceased and objector and deceased were married according to Hindu religious rites and customs about 28 years ago at Magawala Village Nai Basat, Distt. Guna, Madhya Pradesh. The objector and deceased were living at 118 A, Narayan Nagar Extension, Laxmi Nagar, Delhi and ration card and identity card was also issued. It is further submitted that deceased and objector had solemnised the marriage of their daughter Smt. Neetu on 26.11.1992 from their residence. It is further submitted that Sh. Anil Kumar and Vinod Kumar are not sons of the deceased. It is further submitted that petitioner is not entitled to any relief.

5. In reply to the objections, the petitioner has denied that objector Chandra is legally wedded wife of the deceased. In fact, she was living with the deceased as his concubine and never as a wife or allegedly legally wedded wife of the deceased. None of the children named by objector is born from the loins of the deceased. It is further submitted that the deceased has filed a petition under section 9 of the Hindu Marriage Act against the petitioner for restitution of conjugal rights and in the said proceedings, the parties had arrived at a compromise. It is further submitted that before the objector had come into contact of the deceased, the objector had already been mother of three children Smt. Neetu, Sh. Deepak and Ms. Barkha. 6 Petitioner has got examined herself as PW1. She deposed that deceased was her husband. He expired on 05.08.1998. His death certificate is Ex. P□1. Besides her, the deceased has left behind two sons namely Anil Kumar and Vinod Kumar and they have filed their objections for the grant of Succession Certificate in her favour, the same are Ex. P□2 and Ex. P□3 respectively. She deposed that mother of the deceased had expired and her death certificate is Ex. P□4. Deceased made no WILL during his life time. She further deposed that the deceased has left behind debts and securities as mentioned in para 6 of the petition, the copies of the FDRs are Ex. P□5 to Ex. P□8. The deceased was ordinarily a resident of Delhi. The copy of ration card of the deceased is Ex. P□9. The copy of passbook of saving bank account of Allahabad Bank is Ex. P□10. She further deposed that during his life time the deceased has filed a petition for restitution of conjugal rights U/s 9 of Hindu Marriage Act, the certified copy of the petition is Ex. P□11. The said petition was compromised by the parties and the petition was dismissed□as□infructuous in view of the compromise, the certified copy of the order sheet dated 14.05.1985 is Ex. P□12. She further deposed that she has attended the cremation ceremonies of the deceased and the photographs of the cremation are Mark A to D. The receipt of purchase of wood for cremation is Ex. P□13 and the cremation slip is Ex. P□14. She deposed that she is the legally wedded wife of the deceased and no divorce took place between her and deceased. She further deposed that she did not know the objector and she (objector) is not the legally wedded wife of the deceased and is not entitled for the grant of Succession Certificate . She further deposed that she has brought the negatives of Mark A to D and the same are Ex. P□15 to Ex. P□17. She further deposed that she had forgone her claim in respect of the saving bank account bearing No. 17111 lying with Dena Bank.

7 In cross□examination, petitioner deposed that she came to Delhi in the year 1976 and her age in the year 1976 was 20 years (approximately). She further deposed that deceased Janak Raj was having five brothers and one sister namely Yashpal, Jangi Pal, Janak Raj, Jagmohar, Ashok Kumar and Hemlata. She further deposed that marriage did not take place in any Mandir and her marriage took place in Jhilmil Colony and she did not know the name of the Pandit who performed her marriage and marriage was mediated by one, Laxman Harney, who was the native of her village and no member of Laxman Harney resides at Delhi. She further deposed that no family member of Janak Raj attended the marriage except father. She deposed that she had asked Laxmi Harney, who had told that Janak Raj was not married before. She further deposed that she gave birth to first child in the year 1980 in her native village. She deposed that she never attended any of the ceremonies or functions in the family of the deceased Janak Raj but family of Janak Raj had attended the marriage of her nephew. She denied the suggestion that she is not the legally wedded wife of the deceased and was only his mistress. She denied the suggestion that she was ever implicated in criminal case of prostitution under Section 3/4/5/6 ITP Act in the year 1987 vide FIR No. 191/87 of PS Kamla Nagar, Delhi. She further deposed that she did not know whether case under Section 2/3/4/5/6/7 SIT Act

in the year 1987 vide FIR No. 131/1987 of PS Kamla Market, Delhi was registered against her or not. She further deposed that no FIR was registered against her. She deposed that she did not know whether objector Smt. Chandra Devi was married to Janak Raj prior to her coming into contact with Janak Raj. She admitted that in photographs one of the persons is Janak Raj and small album containing 23 photographs are collectively Ex.PW□/D. 8 Petitioner has also got examined Sh. Sanjay Mishra as PW□. He deposed that he knew the deceased and he also knew the petitioner Rukmani Devi, who was the wife of the deceased Janak Raj and both of them used to reside at 534, Pocket□, Paschim Puri, Delhi and he deposed that deceased had two sons namely Anil and Vinod and Mark D bears the photograph of the deceased Janak Raj, Rukmani Devi and Mark B & C are the photographs of Vinod and dead body of Janak Raj respectively. Cremation of deceased was performed by Vinod being son and he had not seen the respondent who was present in the Court, either at the house of the deceased and at the time of death or cremation of the deceased.

9 In cross□examination, he deposed that he is not the relative of the deceased Janak Raj. He admitted that he did not attend the marriage of Janak Raj and Rukmani.

10 Objector Chandra Devi got examined herself as OW□. She deposed that she was married to deceased Janak Raj according to Hindu Religious rites and customs in the year 1971 at Magawala Village, Nai Basat, District Guna, Madhya Pradesh and through the wedlock four children were born namely Smt. Neetu, Deepak, Kamal and Barkha and was residing since 02.09.1980, bearing property bearing No. 118□A, Narain Nagar Extension, Shakarpur, Delhi and it had been her matrimonial home and the birth certificates of all of her four children referred the name of Janak Raj as their father and the place of birth as 118□A, Narain Nagar Extension, Shakarpur, Delhi and copies of their birth certificates are Ex. OW□/A to Ex. OW□/D. She further deposed that photo identity card of the deceased was issued referring the address of deceased Janak Raj as 118□A, Narain Nagar Extension, Shakarpur, Delhi, which is Mark A. She deposed that deceased Janak Raj performed the marriage of their daughter Ms. Neetu on 26.11.1992, as per Customs and being father performed the ritual of KANYADAAN and the photograph of marriage of Ms. Neetu are already exhibited in the evidence of PW□. She further deposed that petitioner Smt. Rukmani Devi was concubine of Late Janak Raj and she is not a lady of clean antecedents as she had been involved in cases of immoral trafficking and at the time of marriage with her (objector), deceased was a bachelor and none of the alleged children of Smt. Rukmani Devi was born through the alleged relationship with the deceased.

11 In cross□examination she deposed that she has placed on record the death certificate of the deceased and thereafter the court file was shown to the witness and she had admitted that no such death certificate was filed on record by the witness. She further deposed that her husband expired in Punjabi Bagh, Delhi but she did not come to know about his death. She admitted that deceased expired at 534/3, Paschim Puri, Punjabi Bagh, Delhi and she can not admit or deny that deceased expired in the house of petitioner Rukmini Devi. She deposed that the deceased was cremated at Punjabi Bagh but she do not know who cremated him. She deposed that she could not admit or deny the suggestion that deceased was cremated by Rukmini Devi or Vinod Kumar. She further deposed that she married to deceased Janak Raj in the year 1971 but she did not remember the exact date or month. She deposed that she is in the possession of ration card issued after her marriage with Janak

Raj in the year 1971 till 1988 but she had not placed the same on record. She admitted that in photographs Mark D, the lady visible in pink cloths sitting between two persons is the photograph of Rukmini Devi which is exhibited as Ex.Ow1/D. She admitted that this photograph shows the death body of Janak Raj. She denied the suggestion that she was never married to deceased Janak Raj and her four children were not born out of the said wedlock. She deposed that birth certificates, Ex. Ow/A to Ex. Ow/D were got prepared at the time of birth of her four children. She denied the suggestion that these documents were got prepared by her later on or that they are manipulated documents.

12 I have heard the counsel for the parties and perused the record.

13 It may be mentioned here that succession petitions are to be decided summarily. Sec. 373 of the Indian Succession Act provides that a succession petition is to be decided in a summary manner and even if court cannot decide the right to the certificate without determining questions of law or fact which may seem to be too complicated and difficult for determination in a summary proceeding, the Court may nevertheless grant a certificate to the applicant if he appears to be the person having prima facie the best title thereto. Thus U/s 373 of Indian Succession Act, only prima facie case is to be seen and other questions of law and fact which may be complicated are to be decided in regular civil court.

In the case of Madhvi Amma Bhawani Amma and others, Appellants Vs. Kunjikutty Pillai Meenakshi Pillai and others, Respondents. AIR 2000 Supreme Court 2301 = 2000 AIR SCW 2432 it was held that "subsec. (3) of S. 373 of Succession Act which deals with procedure for grant of certificate reveals two things, first adjudication for grant of certificate is summary proceedings and secondly if the question of law and fact are intricate or difficult, it could still grant the said certificate based on applicants prima facie title. In other words the grant of certificate under it is only a determination of prima facie title. This as a necessary corollary confirms that it is not a final decision between the parties. So, it cannot be construed that mere grant of such certificate or a decision in such proceeding would constitute to be a decision on an issue finally decided between the parties. If that be so the principle of res judicata cannot be made applicable."

14 Ld. counsel for the petitioner argued that in the year 1985, deceased Janak Raj himself filed a petition under Section 9 of Hindu Marriage Act alongwith affidavit and admitted petitioner as his legally wedded wife and two sons from the said wedlock. The deceased died at 534/3, Paschim Puri, Delhi at the house of the petitioner and was cremated by the Petitioner and his sons. The respondent even does not know about the date of death of the deceased and even date and month of her marriage with the deceased.

15 Ld. Counsel for the respondent argued that petitioner only remained adamant upon certified copy of judgment of restitution of conjugal rights allegedly filed by deceased Janak Raj against the petitioner as her proof of being wife of deceased Janak Raj and the alleged certified copy has not been proved as per law. Even otherwise, the said petition in no manner proved the petitioner of being legally wedded wife of Late Janak Raj and had the petitioner being the legally wedded wife of Janak Raj, she could have easily shown the birth certificates of alleged children showing their

parentage that of Janak Raj and other documents such as School Certificates of the children. He further argued that petitioner in her own cross-examination admitted that she had no knowledge to the fact that if Janak Raj was married to respondent prior to the petitioner coming in contact with Janak Raj.

16 Let us see whether the petitioner or the objector has been able to prove prima facie status of legally wedded wife of the deceased.

17 The petitioner has relied upon certified copy of petition under Section 9 of Hindu Marriage Act (Ex. P-1) filed by the deceased against the petitioner in which he had admitted that petitioner is legally wedded wife and two sons namely Anil Kumar and Vinod Kumar from the said wedlock. Petitioner has deposed that no divorce took place between her and the deceased and even from the photographs on record, it is prima facie clear that petitioner was present at the time of death of the deceased and respondent was not present at the time of death of the deceased with the deceased. 18 On the other hand, objector has only deposed orally that she was married with the deceased in the year 1971. Even she could not tell the date or month of her marriage with the deceased. She did not call any witness to establish her marriage with the deceased in the year 1971. Therefore, on the basis of evidence on record, this Court is of the opinion that prima facie petitioner has established that she is the legally wedded wife of the deceased and two sons were born from the said wedlock namely Anil Kumar and Vinod Kumar.

19 Ld. Counsel for the petitioner argued that alleged birth certificates (Ex. OW-1/A to OW-1/D) proved by the objector were prepared subsequently as appears on Ex. OW-1/A, the date of issuance is 02.02.1990, whereas date of birth is shown as 11.04.1977. Here, I do not find much force in the submission of Ld. Counsel for the petitioner because these documents were executed by the concerned authorities much prior to the death of the deceased in which the deceased Janak Raj has been shown as father of Smt. Neetu, Deepak, Kamal and Barkha. Therefore, these documents prima facie show that they were born to the deceased through objector. Here, it is worthwhile to mention that in the reply to the objections, the petitioner has averred that objector is not legally wedded wife and in fact, she was living with the deceased as his concubine and not as a wife. However, since objector has not been able to prove her valid marriage with the deceased, therefore, Smt. Neetu, Deepak, Kamal and Barkha can at best be termed as illegitimate children.

20 What is the right of illegitimate children is clearly defined in Section 16 of Hindu Marriage Act. Law is well settled that even the illegitimate children are entitled to succession in the properties of the deceased parents.

21 "Sec 16. Legitimacy of children of void and voidable marriages. (1) Notwithstanding that a marriage is null and void under Section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under Section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity. Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under Section 12, any rights in or to property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents."

This legal position has been beautifully described by Hon'ble Supreme Court in the case of Smt. Parayankandiyal Eravath Kanapraavan Kalliani Amma and others, Appellants Vs. K. Devi and others, Respondents AIR 1996 SUPREME COURT 1963=1996 AIR SCW 2337 wherein it was held, (in para 76) The words 'notwithstanding that a marriage is null and void under Section 11' employed in Section 16 (1) indicate undoubtedly the following : □

(a) Section 16 (1) stands delinked from Section 11.

(b) Provisions of Section 16 (1) which intended to confer legitimacy on children born of void marriages will operate with full vigour in spite of section 11 which nullifies only those marriages which are held after the enforcement of the Act and in the performance of which Section 5 is contravened.

(c) Benefit of legitimacy has been conferred upon the children born either before or after the date on which Section 16(1) was amended.

(d) Mischief or the vice which was the basis of unconstitutionality of unamended Section 16 has been effectively removed by amendment.

(e) Section 16 (1) now stands on its own strength and operates independently of other Sections with the result that it is constitutionally valid as it does not discriminate between illegitimate children similarly circumstanced and classifies them as one group for conferment of legitimacy.

Section 16, in its present form, is, therefore, not ultra vires the Constitution.' (in para 77 it was held) 'Section 16 contains a legal fiction. It is by a rule of fictio juris that the Legislature has provided that children, though illegitimate, shall, nevertheless, be treated as legitimate notwithstanding that the marriage was void or voidable'.

(in para 79 it was held) 'In view of the legal fiction contained in Section 16, the illegitimate children, for all practical purposes, including succession to the properties of their parents, have to be treated as legitimate. They can not, however, succeed to the properties of any other relation on the basis of this rule, which in its operation, is limited to the properties of the parents.' 22 Section 8 & 9 of Hindu Succession Act provides that children of deceased (which would include illegitimate children) are classed legal heir and they are entitled to succession to the exclusion of others.

23 As I have already held above that objector has not been able to prove herself to be the legally wedded wife of the deceased in the eyes of law, therefore, there is no question of the objector succeeding to the estate of the deceased.

24 Therefore, in view of the above, I am of the considered opinion that there is no impediment for grant of Succession Certificate in favour of petitioners namely Rukmani Devi and also in favour of respondents namely Neetu, Deepak, Kamal and Barkha qua the debts and securities of the deceased Shri Janak Raj. I accordingly direct that a Succession Certificate be issued in favour of the petitioners namely Rukmani Devi and also in favour of respondents namely Neetu, Deepak, Kamal and Barkha qua the debts and securities of the deceased Shri Janak Raj in the following ratio : □
Petitioner Rukmani Devi Will take 3/7th share in the debts and securities of the deceased Janak Raj.

Objectors namely Neetu, Deepak
Kamal and Barkha

Will take 1/7th share each
in the debts and securities
of the deceased Janak Raj.

in terms of Ex. P□5 to Ex. P□8 and Ex. P□10, on filing of requisite proportionate court fee and on furnishing an Indemnity Bond with one surety within 15 days.

Since LR, namely Kamal is minor, his 1/7th share be kept in term deposit till he attains the age of majority.

No further orders are required to be passed in the matter. File be consigned to Record Room.

Announced in the open court
on 28.05.2011

(SANJEEV KUMAR SINGH)
Administrative Civil Judge (Central)
Delhi

28.05.2011

Pr: None.

Vide separate judgment announced in the open court today, Succession Certificate is ordered to be issued in favour of petitioners namely Rukmani Devi and also in favour of respondents namely

Neetu, Deepak, Kamal and Barkha qua the debts and securities of the deceased Shri Janak Raj. I accordingly direct that a Succession Certificate be issued in favour of the petitioners namely Rukmani Devi and also in favour of respondents namely Neetu, Deepak, Kamal and Barkha qua the debts and securities of the deceased Shri Janak Raj in the following ratio :□Petitioner Rukmani Devi Will take 3/7th share in the debts and securities of the deceased Janak Raj.

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(Sanjeev Kumar Singh) ACJ (Central)/Delhi 28.05.2011